

**REQUEST FOR PROPOSALS FOR
THE ESTABLISHMENT OF 250 MW / 1000 MWh
STANDALONE BATTERY ENERGY STORAGE SYSTEM
FROM 10 MW /40 MWh AC CAPACITY PROJECTS
ON BUILD, OWN AND OPERATE BASIS
WITH 15 YEAR OPERATIONAL PERIOD**

International Competitive Bidding (ICB)

PROPOSAL FOR STANDALONE BATTERY ENERGY STORAGE SYSTEM

TO BE CONNECTED TO GRID SUBSTATION

(Capacity:MW, MWh)

Tender No: TR/REP&PM/ICB/2026/001/C

July 03, 2026

VOLUME II

PROPOSAL LETTERS AND FORMS

National System Operator (Pvt.) Ltd.
No. 50, Sir Chittampalam A. Gardiner Mawatha, COLOMBO 00200, SRI LANKA



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SECTION 1: PROPOSAL LETTER FOR STANDALONE BATTERY ENERGY STORAGE SYSTEM ON BUILD, OWN AND OPERATE BASIS

Tender No: TR/REP&PM/ICB/2026/001/C

(Original of this letter to be filled and signed by the authorized person on behalf of the Project Proponent and submitted along with the Proposal)

Standalone Battery Energy Storage System connected toGrid Substation
CapacityMW / MWh

To: The Chief Executive Officer, National System Operator (Pvt) Ltd.

In response to the RFP entitled " THE ESTABLISHMENT OF 250 MW / 1000 MWh STANDALONE BATTERY ENERGY STORAGE SYSTEM FROM 10 MW /40 MWh AC CAPACITY PROJECTS ON BUILD, OWN AND OPERATE BASIS WITH 15 YEAR OPERATIONAL PERIOD " and in accordance with the Instructions to Project Proponents, the undersigned hereby proposes to the National System Operator (Pvt) Ltd a company falls under the Ministry of Power & Energy of the Government of Sri Lanka, to finance, design, procure, construct, commission, operate and maintain a Battery Energy Storage System connected to Grid Substation on a Build, Own and Operate basis, in accordance with the provisions of this RFP and the Project Agreements set out in the RFP.

The undersigned agrees that this proposal shall remain open for acceptance and shall remain irrevocable for a period of **180 calendar days** from the Closing Date given in the RFP, and it shall remain binding upon the undersigned and may be accepted at any time before the expiration of that period. The undersigned certifies that he or she has examined and is fully familiar with all of the provisions of the RFP, the Project Agreements and any addenda thereto; has carefully reviewed the accuracy of all statements in the RFP and attachments thereto, and, by careful examination of the RFP, the Project Agreements and any addenda thereto, is satisfied as to the nature and location of all the works, the general and local conditions of the agreements and all other matters which can in any way affect the Facility or the cost thereof. The undersigned hereby agrees that the NSO or it's representatives will not be responsible for any errors or omissions on the part of the undersigned in preparing this Proposal.

On acceptance of the Letter of Award the undersigned shall submit a Performance Security (Bond) in the form of a bank guarantee to an amount of **LKR Eighty Five Million (LKR 85,000,000/-) per 10MW/40MWh BESS Project** and agrees to execute the Energy Storage Agreement for the provision of the Facility to be financed, designed, constructed, commissioned, operated and maintained by a Project Company of the undersigned.

The undersigned also acknowledges receipt, understanding, and full consideration of the following addenda to the RFP into the Proposal:

Addenda Nos: _____

Name: _____

In the Capacity of: _____ (Title)

duly authorized to sign proposal for an on behalf of

Project Proponent: _____ (Name)

Dated: _____

Office address:

_____ (P.O. Box or Street and No.)

_____ (Town)

_____ (Telephone No.) _____ (Telex No.)

_____ (Mobile No.)

_____ (Fax No.)

_____ (Email)

Signature: _____

SECTION 2: CERTIFICATE OF PURCHASE OF RFP

(Original of this certificate of purchase to be filled and signed by the authorized person on behalf of the Project Proponent and submitted along with the Proposal)

THE ESTABLISHMENT OF 250 MW / 1000 MWh STANDALONE BATTERY ENERGY STORAGE SYSTEM FROM 10 MW /40 MWh AC CAPACITY PROJECTS ON BUILD, OWN AND OPERATE BASIS WITH 15 YEAR OPERATIONAL PERIOD

Tender No: TR/REP&PM/ICB/2026/001/C

Project Proponent's name:

.....

Non-refundable fee receipt No. (PIV No.& Date):

Director (Renewable Energy and Energy Storage Capacity Procurement)
 National System Operator (Pvt) Ltd

Date:.....

I/We agree to abide by the conditions of the RFP purchased from the NSO and submit my/our "Proposal" as per the requirements of the RFP.

Grid Substation to be connected:

Name & Position of Signatory:

.....

Address of the Project Proponent:

.....

.....

.....

.....
Signature of the Project Proponent and the Seal

Date:

8. NAMES OF ALL INDIVIDUAL LEGAL ENTITIES COMPRISING THE PROJECT PROPONENT

Name of the * member/ Parent company/affiliate companies/partners	Office address (including phone and fax no.)	Role of the member in this project	% equity contribution **	Years of experience & type of work undertaken ***
---	--	---------------------------------------	---------------------------------	--

- * The Memorandum and Articles of Association (or the Joint Venture/Consortium Agreement if applicable) shall be attached hereto and the lead member shall be identified.
Brochures, leaflets etc., describing each member (or relevant parent/affiliates/partners) shall be attached.
- ** Attach Board Resolutions of commitment of each entity to provide the required equity.
- *** State the main activity or business of each member (or parent/affiliate)
i.e., Construction, design, project management, utility operations, finance, etc.

9. EACH OF THE PROJECT PROPONENT'S MEMBERS AND RELEVANT PARENT/AFFILIATE COMPANIES' MEMBERS OF THE BOARD OF DIRECTORS

Members of the Board

Name:

Function:

Chief Executive Officer

Name:

Designation:

Attach a certified true copy of Board's Resolution or Power of Attorney authorizing its representative to file the proposal.

(Please use another sheet for additional information)

10. **EXPERIENCE RECORD OF THE PROPOSED BATTERY ENERGY STORAGE EQUIPMENT MANUFACTURER(S)/ SUPPLIER(S) ***

Name and Address of BESS Manufacturer*:

Last 3 years' experience as a BESS manufacturer:

NAME OF THE CLIENT	NAME OF THE PROJECT (if available)	Battery Energy Storage System		
		TOTAL CAPACITY	No. OF UNITS	MODEL

Name and Address of Inverter Manufacturer*:

Last 3 years' experience as inverter manufacturer:

NAME OF THE CLIENT	NAME OF THE PROJECT (if available)	Battery Energy Storage System		
		TOTAL CAPACITY	No. OF UNITS	MODEL

Name and Address of PPC Manufacturer*:

Last 3 years' experience as PPC manufacturer:

NAME OF THE CLIENT	NAME OF THE PROJECT (if available)	PPC		
		TOTAL CAPACITY	No. OF UNITS	MODEL

* Literature/brochures/technical magazines describing the business/facilities/organization of manufacturer shall be attached, as well as an Expression of Interest for the supply of battery energy storage system and equipment.

SECTION 4: CAPACITY CHARGE RATE PROPOSAL

Tender No: TR/REP&PM/ICB/2026/001/C

Please note that the Capacity Charge Rate payable will be a flat tariff for the entire commercial operation period of 15 years. There will not be any escalation to the Capacity Charge Rate during the entire commercial operation period.

In case single Project Proponent has applied for multiple projects at different locations, the Project Proponent must indicate each application by assessing ranking with 1 representing the highest priority. The fulfilment of financial eligibility at final stage will be decided based on the provided priority.

Grid Substation :

Priority Rank :

	(LKR/MW/Month)	
	In figure	In words
Capacity Charge Rate for supply of storage services from the BESS Project (excluding VAT)		

LKR/MW/Month: Sri Lankan Rupees per Mega Watt per month

There shall be NO decimal places in figure quoted for Capacity Charge Rate

Name:

In the Capacity of:(Title)

Duly authorized to sign proposal for an on behalf of

Project Proponent:(Name)

Signature:

Dated:

Witnesses:

1.

2.

Name:

Name:

NIC/Passport No.:

NIC/Passport No.:

SECTION 5: COMPLIANCE SCHEDULE

Tender No: TR/REP&PM/ICB/2026/001/C

NON-AVAILABILITY OF ANY ONE OF THE FOLLOWING INFORMATION AND SECTIONS COULD ALSO RESULT IN THE REJECTION OF THE PROPOSAL (Refer Clause 6.3 & 6.4 of RFP Volume I)

The submitted documents should be clearly tagged with the item number specified in the list below

	Requirement	Complied (Yes/No)	Remarks
1	Proposal Letter and Certificate of Purchase of RFP (Section 1 & 2 of Volume II of RFP) RFP should be purchased from NSO		Please annex the duly filled Original Proposal letter, original of the Certificate of Purchase of RFP
2	Proposal Security amounting to Sri Lankan Rupees 25 (Twenty five) million per 10MW/40MWh BESS		Provide the Original Proposal Security
3	Certificate of Registration. [Requirement under the Public Contract Act No. 3 of 1987]		Provide as per Clause 6.3 of Volume I of RFP (Form PCA 3)
4	Details of the Project Proponent (Section 3 of Volume II of RFP)		Provide requested details and attach relevant documents
5	Duly executed Board Resolution or Power of Attorney to the authorized representative who is to sign on behalf of the Project Proponent.		Should be provided
6	Financial Evaluation		Provide requested documents as per Section 7 of Volume II of RFP
7	Capacity Charge Rate Proposal (Section 4 of Volume II of RFP)		Attach duly filled original Capacity Charge proposal
8	Technical Information		Provide the details as in Section 6 of Volume I
9	The relevant land documents		Provide the relevant set of documents as specified in Clause 1.3.1 of Volume I
10	Feasibility study report		Provide as per Clause 2.7.2 of Volume I of RFP

Name: _____

In the Capacity of: _____(Title)

Duly authorized to sign proposal for an on behalf of Project Proponent:

_____ (Project Proponent's Name)

Signature: _____

Dated: _____

Information Copy, Not for Bidding

SECTION 6: TECHNICAL DETAILS FOR BATTERY ENERGY STORAGE SYSTEM

No	Item	Units	Required	Tendered
A	BATTERY MODULE			
	General			
A.1	Manufacturer's Name			
A.2	Country of Origin			
A.3	Country of Manufacture			
A.4	Make			
A.5	Model No.			
A.6	Total Area Required (Acres)			
	Dimensions and weight			
A.7	Width/Height/Depth, mm (W/H/D)	mm		
A.8	Weight approximately	kg		
	Product Compliances and Standards			
A.9	Applicable Standard (latest)		IEC 62619, IEC 62620, IEC 62902, IEC 62485-5, IEC 63056, IEC 62933-1, IEC 62933-2-1, IEC 62933-5-2, UL 9540, UL 9540A, UL 1973, UN 38.3	
A.10	Quality Management		ISO 9001:2015 and ISO 14001:2015	
A.11	Place of Testing			
	BATTERY MODULE DATA			
A.12	No. of Battery Modules			
A.13	Unit Battery Capacity (P_{rated})	MW		
A.14	Unit Battery Storage Capacity (E_{rated})	MWh		
A.15	Total Battery Capacity (P_{rated})	MW		
A.16	Total Battery Storage Capacity (E_{rated})	MWh		
	BATTERY Module Characteristics			
A.17	Maximum continuous discharge/charge rate (C-rate)		0.25C continuous (compatible with 4-hour duty)	
A.18	Depth of Discharge (DoD) limits		≥ 85% usable across operating temperature range	
A.19	Equivalent Full Cycle life (EFCs) at 100% DoD			
A.20	Equivalent Full Cycle life (EFCs) at 80% DoD			
A.21	Equivalent Full Cycle life (EFCs) at 50% DoD			
A.22	Self-Discharge Rate	% / month	≤ 3	
A.23	Thermal management system			
A.24	Cell, module, and rack configuration			
A.25	Operational Temperature Range	°C		

A.26	High voltage safety measures for fire, electrical hazards and automatic shutdown at a fault			
A.28	Noise Levels	dB(A)	≤ 80	
B	INVERTER/PCS			
	General			
B.1	Manufactures Name			
B.2	Country of Origin			
B.3	Country of Manufacture			
B.4	Make			
B.5	Model No.			
B.6	No. of Inverters			
B.7	Rated output power	MW,AC		
B.8	Nominal output voltage ($U_{N(AC)}$)	V		
B.9	Output frequency	Hz		
B.10	Harmonic distortion, current at rated power	%	≤ 3 (current TDD), ≤ 3 (voltage), per IEEE 519-2022 limits	
B.11	Power factor		0.95 leading and Lagging over full operating envelope	
B.12	Droop Settings		1% - 9%	
B.13	Adjustable Frequency Deadband Range		0.0 – 1.0 (settable in 0.05 Hz steps) around 50 Hz	
	Dimensions and weight			
B.14	Width/Height/Depth, mm (W/H/D)	mm		
B.15	Weight approximately	kg		
	Environmental Limits			
B.16	Degree of protection			
B.17	Ambient temp. range (nominal ratings)	°C		
B.18	Relative humidity, not condensing			
B.19	Maximum noise level			
B.20	DC disconnection device			
B.21	AC disconnection device			
B.22	DC overvoltage protection (surge protection)			
B.23	AC overvoltage protection (surge protection)			
	Protection			
B.24	Ground fault monitoring		Yes	
B.25	Grid monitoring		Yes	
B.26	frequency		Yes	
B.27	voltage		Yes	
B.28	Anti-islanding		Yes	

B.29	DC reverse polarity			
B.30	AC and DC short circuit and over current			
B.31	AC and DC over voltage and temperature			
	User interface and communications			
B.32	Local user interface		Yes	
B.33	Analog inputs/outputs		Yes	
B.34	Digital inputs/relay outputs		Yes	
B.35	Fieldbus connectivity		Yes	
B.36	SCADA Integration with NSCC		Yes	
	Product Compliances and Standards			
B.37	Applicable Standard (latest)		IEEE 1547-2018, IEEE 2800-2022, UL 1741-SB, IEC 62477- 1, IEC 62109-1/2, IEC TS 62786-3, IEC 61000-6-2/6-4, IEC 62116	
	Grid support and grid functions			
B.38	Low Voltage Ride Through		Yes	
B.39	Reactive Power Compensation		Yes	
B.40	Grid Forming Capability		Yes	
C	Power Plant Controller			
C.1	Model			
C.2	Manufacturer			
C.3	Country of Manufacture			
C.4	Dimensions			
	Length	mm		
	Width	mm		
	height	mm		
D	Grid Code Requirements as per the clauses in Functional Performance Requirements, Grid Connection code and embedded generation code (Annex A ,B and C of Volume I)			
D.1	NSCC Communication Provisions		Yes	
D.2	Backup Communication Provisions		Yes	
D.3	Inverter protection Requirements		Yes	
D.4	Backup protection Requirements		Yes	
D.5	Frequency Response Requirements		Yes	
D.6	Voltage control requirement		Yes	
D.7	Power Factor and reactive power support		Yes	
D.8	NVD protection		Yes	
D.9	Low voltage ride through (LVRT)		Yes	
D.10	Harmonics Compliance		Yes	
D.11	Flicker Compliance		Yes	
E	Grid Code Compliance Meter as per the clause A.05.22 in Functional Performance Requirements			

E.1	Real-time electrical parameter measurement			
E.2	Power quality monitoring			
E.3	Fault ride-through monitoring			
E.4	Communication and control integration			
E.5	Data storage and reporting			

SECTION 7: FINANCIAL EVALUATION FORMS

SECTION 7.1

Form FIN - 1: Historical Financial Performance

Each Bidder must fill out this form.

In case of a Joint Venture, each Joint Venture Partner must fill out this form separately and provide the Joint Venture Partner's name:

Joint Venture Partner: _____

Financial Data for the Previous Three Years [LKR]

Information from Balance Sheet

	Year 1:	Year 2:	Year 03:
Total Assets (TA)			
Total Liabilities (TL)			
Net Worth = TA-TL			
Current Assets (CA)			
Current Liabilities (CL)			
Working Capital (CA-CL)			

Most Recent Working Capital		To be obtained for most recent year and carried forward to FIN -2 Line 1; in case of Joint Ventures, to the corresponding Joint Venture Partner's FIN – 2.
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Information from the Income Statement

Total Revenues			
Profits Before Taxes			
Profits After Taxes			

☐ Attached are copies of financial statements (balance sheets including all related notes, and income statements) for the last three years, as indicated above, complying with the following conditions.

1. all such documents reflect the standalone financial situation of the legal entity or entities comprising the Bidder and not the Bidder's parent companies, subsidiaries, or affiliates.
2. A certified accountant must audit historical financial statements.
3. Historical financial statements must be complete, including all notes to the financial statements.
4. Historical financial statements must correspond to accounting periods already completed and audited (no statements for partial periods shall be requested or accepted).

Form FIN – 2: Availability of Financial Resources

Bidders must demonstrate sufficient financial resources, usually comprising working capital supplemented by credit line statements or overdraft facilities, and others to meet the Bidder's financial requirements for

- (a) its current contract commitments, and
- (b) The subject contract.

In case of a Joint Venture, each Joint Venture Partner must fill out this form separately and provide the Joint Venture Partner's name:

Joint Venture Partner: _____

No.	Source of Financing Amount (LKR)	Amount (LKR)
1	Working Capital (to be taken from FIN - 1)	
2	Credit Line (* *)	
3	Other Financial Resources	
	Total Available Financial Resources	

() To be substantiated by a letter from the bank issuing the line of credit.**

Form FIN- 3: Financial Requirements for Current Contract Commitments

Bidders (or each Joint Venture partner) should provide information on their current contracts that have been awarded, or for which a letter of intent or acceptance has been received, or for contracts approaching completion, but for which an unqualified, full completion certificate has yet to be issued.

In case of a Joint Venture, each Joint Venture Partner must fill out this form separately and provide the Joint Venture Partner's name:

Joint Venture Partner: _____

Current Contract Commitments

No	Name of Contract	Employer's Contact (Address, Tel, Fax)	Contract Completion Date	Outstanding Contract Value (X)*	Remaining Contract Period in months (Y)**	Monthly Financial Resources Requirement (X/Y)
	Total Monthly Financial Requirement for Current Contract Commitments					

* Remaining outstanding contract values to be calculated from 28 days prior to the bid submission deadline

** Remaining contract period to be calculated from 28 days prior to bid submission deadline.

Form FIN - 4: Self-Assessment Tool for Bidder's Compliance to Financial Resources

This form requires the same information submitted in Forms FIN - 2 and FIN - 3. All conditions of “Available Financial Resources Net of CCC $\geq$ Requirement for the Subject Contract” must be satisfied to qualify.”

Form FIN - 4A: For Single Entities

For Single Entities: (A)	Total Available Financial Resources from FIN – 2 (B)	Total Monthly Financial Requirement for Current Contract Commitments (CCC) from FIN – 3 (C)	Available Financial Resources Net of CCC $D = (B - C)$	Requirement for the Subject Contract (E)	Results: Yes or No [D must be greater than or equal to E] (F)
..... Name of the bidder					

Form FIN - 4B: For Joint Ventures

For Single Entities (A)	Total Available Financial Resources from FIN – 2(B)	Total Monthly Financial Requirement for Current Contract Commitments (CCC) from FIN – 43C)	Available Financial Resources Net of CCC $D = (B - C)$	Requirement for the Subject Contract (E)	Results: Yes or No (D must be greater than or equal to E] (F)
One Partner					
..... Name of the Partner					
Each Partner					
..... Name of the Partner					
..... Name of the Partner					

..... Name of the Partner					
All partners combined	ΣD = Sum of available financial resources net of current contract commitments for all partners		$\Sigma D =$ _____		

Form FIN – 4 is made available for use by the bidder as a self-assessment tool, and by the Employer as an evaluation work sheet, to determine compliance with the financial resources requirement as stated in the bid doc to submit Form FIN - 4 by the Bidder shall not lead to bid rejection.

SECTION 7.2

(a) Estimated Cost Breakdown

Schedule No 01: Plant and Mandatory Spare parts Supplied from Abroad

Item No:	Description	Quantity	Country of Origin	Unit Price CIP (USD)	Total Price (USD)	Total Price (LKR)
		3	4	5	6=3*5	
1	Battery Energy Storage System (battery cells, racks, containers/enclosures)					
2	Power Conversion System (PCS/Inverters)					
3	Battery Management System (BMS)					
4	Energy Management System (EMS)					
5	SCADA & Communication					
6	Medium Voltage (MV) switchgear and transformers					
7	Grid interconnection facilities					
8	Auxiliary power systems					
10.						

	Total Value (to be carried forward to Summary Schedule 04)					
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Schedule No 02: Plant and Mandatory Spare parts Supplied From within the Employer's Country

Item No:	Description	Quantity	Unit Price (LKR)	Total Price (LKR)
1	Spares			
2	Any other item			
3	Land Cost / Lease rental (If any)			
	Total Value (to be carried forward to Summary Schedule 04)			

Schedule No 03: Design, Installation, Other services,

Item No:	Description	Quantity	Unit Price (LKR)	Total Price (LKR)
1	Cost of Design			
2	Cost of civil constructions (site Development, Foundation & Installation.)			
3	33kV transmission line construction cost (material & labour)			
4	Cost of Infrastructure to Communicate with NSCC.			
5	Transport & Logistic Cost			

6	Cost of Finance during the Construction Period			
7	Environmental and Social Management Plan Implementation			
8	Erection, Installation and Commissioning			
9	Other Costs			
	Total Value (to be carried forward to Summary Schedule 04)			

Schedule No 04: Grand Summary

Sch.No	Title	Total Price
1	Plant and Mandatory Spare parts Supplied from abroad	
2	Plant and Mandatory Spare parts supplied from within the Employer's Country	
3	Design, Installation, Other services	
	Grand Total	

(b) Other Details

1) Indicative Annual O&M Cost Breakdown

Task / Item Description	Cost (LKR)
Preventive and corrective maintenance	
EMS/SCADA/BMS software support and licensing	
Spare parts and consumables replacements	
Battery augmentation / replacement provisioning	
Insurance	
Site security and monitoring	
Auxiliary energy consumption	
Warranty and long-term service agreement costs	
Environmental compliance costs	
Fire Protection system maintenance	

Total O &M Cost	
----------------------------	--

**2) Financing Structure
Equity & Debt Breakdown**

Total project cost	
Equity contribution (% and LKR value)	
Debt financing (% and LKR value)	
Debt-equity ratio	

3) Sources of Financing & Cost of Financing

Local Banks	
International Banks	
Private Equity	
Interest rate	
Loan tenure	
Grace Period	
Financial Close conditions if any	
Repayments Structure	

SECTION 8: FORM OF PROPOSAL SECURITY

PROPOSAL SECURITY

WHEREAS _____ of _____ (hereinafter called and referred to as the “**Project Proponent**”) wishes to submit a Proposal to build-own-operate a MW/..... MWh Battery Energy Storage System connected to Grid Substation under Tender Number TR/REP&PM/ICB/2026/001/C.

AND WHEREAS in terms of the Guidelines for Request for Proposal document the Project Proponent is bound and obliged to furnish a Proposal Security along with its Proposal to ensure the due performance of the Project Proponent in terms of the Request for Proposal document.

AND WHEREAS at the request of the Project Proponent, we _____ of _____ a commercial bank having its registered office at _____ are agreeable to and desirous of giving such a proposal security.

WE HEREBY irrevocably undertake and are bound and obliged to pay to the National System Operator (Pvt) Ltd unconditionally and without demur any sum of money not exceeding a sum of LKR..... on their first demand.

Every demand hereunder shall be in writing and signed by the , National System Operator (Pvt) Ltd or his authorized officer (Director – Renewable Energy and Energy Storage Capacity Procurement), National System Operator (Pvt) Ltd and shall be accompanied by a statement to the effect that the Project Proponent has failed and/or neglected to perform its obligations or abide by the terms of the Request for Proposal document. For all purposes connected with and relating to this Proposal Security, every such demand shall be conclusive proof that the amount so demanded is lawfully due under this Proposal Security.

All payments hereunder shall be made in Sri Lanka by bank draft drawn in favour of the National System Operator (Pvt) Ltd.

This Proposal Security shall be valid and binding and shall remain in full force and effect up to and including the _____ (Date) *(should be minimum 180 calendar days from the closing date for submitting Proposals)* and thereafter shall be null and void and of no force or effect (whether the original hereof is returned or not) except in respect of any demand made on or before the aforesaid date.

IN WITNESS whereof this Proposal Security has been signed by the Authorised Signatories of the aforesaid _____ on this _____ day of _____ 20...

Authorised Signatory
Name:
Designation:

Authorised Signatory
Name:
Designation:

Information Copy, Not for Bidding

SECTION 9: FORM OF PERFORMANCE SECURITY

PERFORMANCE SECURITY

Plant Name: _____

WHEREAS _____ of _____ a Company incorporated in Sri Lanka (hereinafter called and referred to as the "Project Company") has submitted a proposal to build-own-operate a MW/..... MWh Battery Energy Storage System connected to Grid Substation under Tender Number TR/REP&PM/ICB/2026/001/C .

AND WHEREAS the proposal submitted by the Project Company has been successful.

AND WHEREAS in terms of the Request for Proposal document the Project Company is bound and obliged to furnish a Performance Security to secure the due performance of the Company in terms of the Request for Proposal document.

AND WHEREAS at the request of the Project Company, we _____ of _____ a Commercial Bank having its registered office at _____ are agreeable to and desirous of giving such a Performance Security;

WE HEREBY irrevocably undertake and are bound and obliged to pay to the National System Operator (Pvt) Ltd unconditionally and without demur any sum of money not exceeding a sum of LKR _____ on their first demand.

Every demand hereunder shall be in writing and signed by the Chief Executive Officer, National System Operator (Pvt) Ltd or his authorized officer (Director – Renewable Energy and Energy Storage Capacity Procurement), National System Operator (Pvt) Ltd and shall be accompanied by a statement to the effect that the Project Company has failed and/or neglected to perform its obligations or abide by the terms of the proposal. For all purposes connected with and relating to this Performance Security, every such demand shall be conclusive proof that the amount so demanded is lawfully due under this Performance Security.

All payments hereunder shall be made in Sri Lanka by cheque or bank draft drawn in favour of the National System Operator (Pvt) Ltd.

This Performance Security shall be valid and binding and shall remain in full force and effect up to and including the _____ (Date) _____ *(a date beyond 30 days from the commercial operation date)* and thereafter shall be null and void and of no force or effect (whether the original hereof is returned or not) except in respect of any demand made on or before the aforesaid date.

IN WITNESS where of this Performance Security has been signed by the Authorised Signatories of the aforesaid _____ on this _____ day of _____ 20...

Authorised Signatory

Authorised Signatory

SECTION 10: TYPICAL FORMAT OF AGREEMENT TO SELL THE LAND

AGREEMENT TO SELL NO.

THIS AGREEMENT MADE AND ENTERED into at on this of Two Thousand and by and between (NIC No V) of in the Democratic Socialist Republic of Sri Lanka (herein after called and referred to as the Vendor which term or expression herein used shall where the context so requires or admits mean and include the said his heirs executors and administrators) of the ONE PART and (NIC No V) of (herein after called and referred to as the said Vendee which term or expression herein used shall where the context so requires or admits mean and include the said his heirs executors and administrators and assigns) of the OTHER PART.

WITNESSETH AS FOLLOWS

WHEREAS the said Vendor seized and possessed of under and by virtue of Deed of bearing No. dated attested by Notary Public of the Land marked Lot In Plan No dated made by Licensed Surveyor of the property situated at and more fully described in the Schedule hereto.

AND WHEREAS the Vendor has agreed with the Vendee to sell and transfer the property more fully described in the Schedule hereto upon the terms and conditions agreed to between the parties hereto as stipulated hereinafter for and only for the purpose of establishment ofMW / MWh Battery Energy Storage System on build, own and operate basis.

NOW THIS INDENTURE WITNESSETH that it is hereby expressly agreed by and between the parties as follows:-

1. That this agreement to sell shall come into effect on day of 20.... for a period of years from there onwards.
2. That the Vendor shall and will sell and transfer to the Vendee and/or his nominee or nominees and the Vendee or his afore-written shall and will purchase from the said Vendor at or for the Price or sum of **RUPEES** (Rs/=) all that Property more fully described in the schedule hereto on or before(at least 6 months from the closing date of the submission of proposals)..... day of 20.... together with all rights privileges easements servitude advantages and appurtenances whatsoever to the said property belonging or in anywise appertaining thereto upon and subject to the terms and conditions hereinafter set forth and contained.
3. That the Vendee had at or prior to the execution hereof paid to the Vendor a sum of **RUPEES** (Rs/=) as an advance payment or Part Payment of the consideration or purchase price aforementioned for the said property.
4. That the balance sum of **RUPEES** (Rs/=) of the purchase price shall be paid by the Vendee by a bank loan obtained from within of the execution hereof. (if necessary)
5. The Vendor has to produce all relevant documents to the Vendee to obtain the Bank loan.
6. In case of a bank loan, the seller must clear out the relevant issues regarding the land.
7. That the said sale and purchase of the said property shall take place on or before the day of 20.....
8. That the balance sum of **RUPEES** (Rs/=) of the purchase price shall be paid by the Vendee at the execution of the Deed of Transfer when the vacant possession is given.

9. That the transaction or sale referred to herein shall be made and completed on or before the date provided herein before namely the day of 20... upon:-
- (a) The Vendee or his nominee or nominees paying to the Vendor the purchased price less the advance or part payment paid hereunder.
 - (b) With the Vendee paying the balance consideration as afore-stated and the Vendee's Notary the Deed of Transfer of the said land and premises more fully described in the schedule hereto in favor of the Vendee such Deed of Transfer being drafted and prepared in the customary form by the Vendee's Notary at the cost and expense the Vendee and/or his nominee or nominees.
10. The Vendor shall handover the vacant possession of the said land and premises free of all or any encumbrances at the execution of the Transfer Deed.
11. That the Vendor shall and will give implied and express warranties of the title of the Deed of Transfer.

All notices or anything required to be given in writing herein shall be deemed sufficiently given or served if addressed and sent by registered post to the said Vendor and to the Vendee at their respective addresses afore-stated or to such other address as the parties hereto shall notify each other in writing sent by registered post.

IN WITNESS WHEREOF the parties hereunto and to one other of the same tenor and date as these presents set their respective hands at on thisday of Two Thousand and

THE SCHEDULES ABOVE REFERRED TO

NOTARY PUBLIC

SECTION 11: POWER TRANSMISSION – SELECTION OF GRID POINT

Please comply with the following interconnection arrangement options as per Clause 3.2, Volume I of the RFP.

Description	Please tick one option (X)
Termination point at the 33kV relevant grid substation. <i>The Battery Energy Storage System (BESS) Facility shall be connected to the Medium Voltage (MV) distribution network with the coordination of respective Distribution Licensee, and the Developer shall be responsible for designing, engineering, procuring, constructing, testing, commissioning, operating, and maintaining all MV interconnection facilities required for evacuation of power from the BESS Facility up to the Point of Interconnection.</i> <i>The Point of Interconnection shall be established at the Grid Substation ("GSS") premises, where the existing feeder shall be split through a gantry arrangement to provide a dedicated circuit for the BESS Facility. The revenue metering point for energy accounting shall be located at the said gantry.</i> <i>The BESS Facility is located within approximately 5 km radial distance from the GSS, and the Developer shall establish and maintain a dedicated MV feeder from the BESS Facility up to the Point of Interconnection. All associated works, including line routing, poles/cables, switchgear, protection systems, SCADA/communication interfaces, and any required augmentation of the MV network to ensure compliance with grid requirements, shall be the sole responsibility of the Developer and shall be undertaken entirely at its own cost and expense, subject to approvals of the Transmission Licensee.</i> <i>All losses and auxiliary consumption occurring in the dedicated MV interconnection system between the BESS Facility and the revenue metering point at the GSS shall be borne by the Developer.</i>	

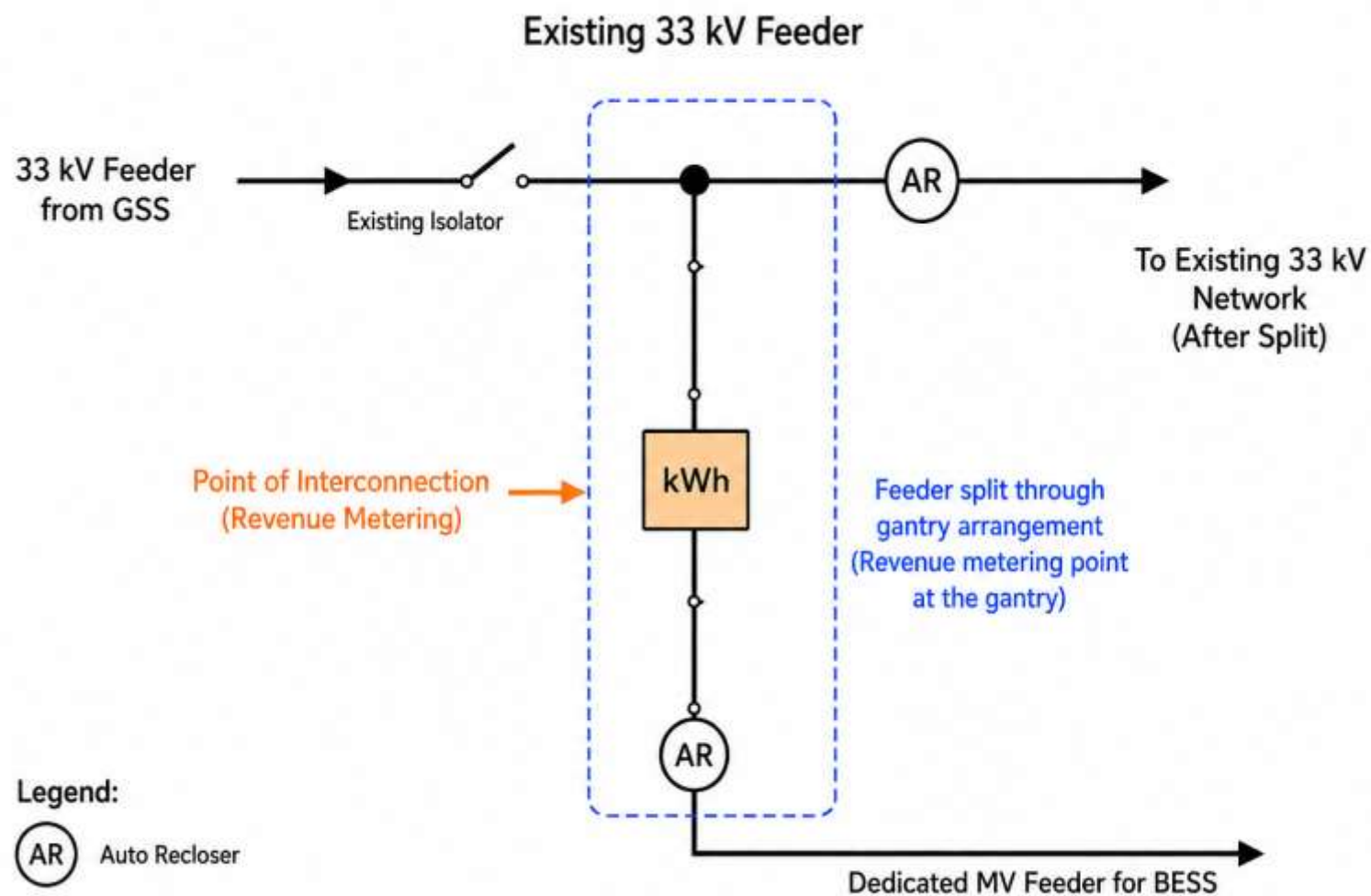
SECTION 12 : LOCATION OF THE LAND & PROPOSED 33KV LINE ROUTE

Please mark the Location of the land and the proposed 33kV line route up to Grid Point in a map (Colour) with following details:

- Extent of the land
- Address of the land
- GPS Coordinates of the corners of the land

Information Copy, Not for Bidding

SECTION 13: TYPICAL METERING ARRANGEMENT INDICATING TERMINATION, METERING & GRID POINTS



SECTION 14: METERING CUBICLE DRAWING

